Fort Bend County District Court

Cause No. 2025-CV-0010

Shirley Rhodes, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	February 2, 2025
Plaintiff's counsel:	Nicole Arias, Mitchell & Hines Injury Lawyers

PARTIES

Plaintiff Shirley Rhodes is an individual residing in Texas who was the driver of a passenger vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to write motor vehicle policies in the State of Texas, which issued the policy under which Plaintiff seeks coverage and benefits.

FACTS

On December 28, 2023, Plaintiff was driving through a signalized intersection in Houston when another vehicle entered the intersection and struck the side of Plaintiff's vehicle. The impact drove Plaintiff's car sideways and caused the driver's side to absorb the force of the collision. Plaintiff reported the collision to Defendant promptly, provided the information requested, and has otherwise complied with the conditions of the policy. Defendant has not paid the benefits owed for Plaintiff's injuries and losses within the time required by Texas law.

NEGLIGENCE

The at-fault driver failed to yield the right of way, failed to keep a proper lookout, and entered the intersection when it was unsafe to do so, which is negligence under Texas law. Defendant is liable under the terms of its policy for benefits owed to its insured and, to the extent applicable, is bound by the statutory duties of the Texas Insurance Code to attempt in good faith to effectuate a prompt, fair, and equitable settlement of a claim once liability has become reasonably clear. Defendant failed to do so, and its handling of the claim was unreasonable.

DAMAGES

As a direct result of the collision, Plaintiff suffered a serious knee injury requiring medical evaluation, treatment, and ongoing care. Plaintiff has incurred medical expenses, lost wages, and pain and suffering, and will likely continue to incur future medical costs and diminished capacity. Plaintiff seeks recovery of policy benefits, statutory interest, attorney's fees, and court costs, and demands judgmnet against Defendant in the amount of $207,000.00, together with all other relief to which Plaintiff may be entitled.